

Court No. - 39

Case :- WRIT - C No. - 27838 of 2023

Petitioner :- M/S Uflex Limited

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Nisheeth Yadav, Anand Kumar Yadav, Sr. Advocate

Counsel for Respondent :- C.S.C., Abhishek Srivastava, Kartikeya Saran

Hon'ble Saumitra Dayal Singh, J.

Hon'ble Rajendra Kumar-IV, J.

1. Heard Sri C.B. Yadav, learned Senior Advocate, assisted by Sri Nisheeth Yadav, learned counsel for the petitioner and Sri Abhishek Srivastava, learned counsel for respondent nos. 2 and 4.

2. Challenge has been raised to the order dated 31.07.2023 passed by respondent no.4. Thereby dispute has been raised by the petitioner as to lack of liability to pay the fixed charges when the electricity supply was discontinued for reason of illegal acts of third party causing damage to the supply cable. That claim has been rejected in terms of Clause 6.5(b)(iii) of the U.P. Electricity Supply Code, 2005 (hereinafter referred to as the 'Code').

3. While learned Senior Counsel would impress on the Court the inherent illegality in the demand raised and has further relied on two earlier decisions of this Court in **M/S Modern Rice Mill Vs. MVVNL & Anr. (Writ - C No. 52054 of 2010)** decided on 19.10.2011 and **Harihar Cold Storage Vs. PVVNL & Anr. (Writ - C No. 24309 of 2007)** decided on 22.12.2011, learned counsel for the respondents would contend, if the petitioner is aggrieved by the decisions made under Clause 6.5(b)(iii) of the Code, it has adequate statutory remedy in terms of Clause 7.10(iii) of the Code.

4. He has also placed on record a written communication received by him, dated 23.06.2023 constituting the Consumer

Grievance Redressal Forum at NOIDA comprising of one Chairman and four members. He further states, the said forum is wholly functional.

5. In face of such statutory remedy available and also *prima facie* in face of factual dispute involved, we are of the opinion, the same may be properly examined by the statutory forum first, before the writ Court may exercise its discretion.

6. Accordingly, for reason of statutory alternative remedy available, interference under Article 226 of the Constitution of India is declined.

7. As to the further concern being expressed by the learned Senior Counsel that the petitioner is facing threat of disconnection, it is provided, subject to the petitioner availing statutory remedy in terms of Clause 7.10(iii) of the Code within a period of one week from today along with a copy of this order, the petitioner shall also be at liberty to apply for stay pending consideration by the statutory forum. That application when filed may be dealt with on its own merit within a period of one week of its institution.

8. With the aforesaid observation, present writ petition is **disposed of.**

Order Date :- 21.8.2023

Abhilash

(Rajendra Kumar-IV, J.) (S. D. Singh, J.)

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Counsel for Respondent :- C.S.C., Abhishek Srivastava, Kartikeya Saran

Hon'ble Saumitra Dayal Singh, J.

Hon'ble Arun Kumar Singh Deshwal, J.

As prayed, put up before appropriate Bench on 26 September 2023.

Order Date :- 21.9.2023

Prakhar

(Arun Kumar Singh Deshwal, J.) (S.D.Singh, J.)

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Counsel for Petitioner :- Nisheeth Yadav, Anand Kumar Yadav, Sr. Advocate

Counsel for Respondent :- C.S.C., Abhishek Srivastava, Kartikeya Saran

Hon'ble Saumitra Dayal Singh, J.

Hon'ble Rajendra Kumar-IV, J.

In Re: Civil Misc. (Recall) Application No. 2 of 2023.

1. Heard Sri C.B. Yadav, learned Senior Advocate, assisted by Sri Nisheeth Yadav, learned counsel for petitioner and Sri Abhishek Srivastava, learned counsel for respondent No.2 and 4.

2. The present application has been moved for the reason disclosed in the affidavit.

3. Accordingly, it has come to the notice of the Court, the Consumer Grievance Redressal Forum, NOIDA does not have jurisdiction to deal with the grievance of the present petitioner and that jurisdiction would lie with the Consumer Grievance Redressal Forum, Company Level, at Meerut. It is further submitted that the order dated 21.8.2023 passed on the representation made by the respondent suffers from error to the extent the writ petition has been dismissed requiring the petitioner to approach the forum lacking jurisdiction.

4. Today, upon instruction received by Sri Abhishek Srivastava, it has been submitted that earlier statement came to be made due to inadvertence. Upon further instructions, he would say that the

jurisdiction to deal with the grievance voiced by the petitioner would lie before the Consumer Grievance Redressal Forum, Company Level, at Meerut. As to the time that would be required by the Forum to deal with the application, it has been further submitted that subject to the petitioner approaching the forum within a period of one week that application may be dealt with expeditiously such as that stay application may be disposed of within a period of 15 days from the date of its institution.

5. Having heard learned counsel for the parties, we find that the order dated 21.08.2023 requires correction. 7.

6. Accordingly, for the sake of convenience, we required the order dated 21.08.2023 be treated as deleted and replaced with the following order :-

"1. Heard Sri C.B. Yadav, learned Senior Advocate, assisted by Sri Nisheeth Yadav, learned counsel for the petitioner and Sri Abhishek Srivastava, learned counsel for respondent nos. 2 and 4.

2. Challenge has been raised to the order dated 31.07.2023 passed by respondent no.4. Thereby dispute has been raised by the petitioner as to lack of liability to pay the fixed charges when the electricity supply was discontinued for reason of illegal acts of third party causing damage to the supply cable. That claim has been rejected in terms of Clause 6.5(b)(iii) of the U.P. Electricity Supply Code, 2005 (hereinafter referred to as the 'Code').

3. While learned Senior Counsel would impress on the Court the inherent illegality in the demand raised and has further relied on two earlier decisions of this Court in M/S Modern Rice Mill Vs. MVVNL & Anr. (Writ - C No. 52054 of 2010) decided on 19.10.2011 and Harihar Cold Storage Vs. PVVNL & Anr. (Writ - C No. 24309 of 2007) decided on 22.12.2011, learned counsel for the respondents would contend, if the petitioner is aggrieved by the decisions made under Clause 6.5(b)(iii) of the Code, it has adequate statutory remedy in terms of Clause 7.10(iii) of the Code.

4. He has also placed on record a written communication received by him, dated 23.06.2023 constituting the Consumer Grievance Redressal, Company Level, at Meerut. He further states, the said forum is wholly functional.

5. In face of such statutory remedy available and also prima facie in face of factual dispute involved, we are of the opinion, the same may be properly examined by the statutory forum first, before the writ Court may exercise its discretion.

6. Accordingly, for reason of statutory alternative remedy available, interference under Article 226 of the Constitution of India is declined.

7. As to the further concern being expressed by the learned Senior Counsel that the petitioner is facing threat of disconnection, it is provided, subject to the petitioner availing statutory remedy in terms of Clause 7.10(iii) of the Code within a period of one week from today along with a copy of this order, the petitioner shall also be at liberty to apply for stay pending consideration by the statutory forum. That application when filed may be dealt with on its own merit within a period of one week of its institution.

8. In view of above, the delay caused is attributed to inadvertence committed by the respondent. Therefore, subject to the petitioner complying with the terms of this order within a period of one week, no coercive action may be adopted against him for a period of four weeks.

9. With the aforesaid observation, present writ petition is disposed of."

7. Recall application is disposed of.

Order Date :- 26.9.2023

Akram

(Rajendra Kumar-IV,J.) (S. D. Singh,J.)